



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 13 judgments on Tuesday 7 February 2017 and 26 judgments and / or decisions on Thursday 9 February 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 7 February 2017

Wdowiak v. Poland (application no. 28768/12)

The applicant, Robert Wdowiak, is a Polish national who was born in 1975 and lives in Tryszczyn (Poland). The case concerns his contact rights with his child.

Mr Wdowiak's son, J., was born on 2 December 2002. Shortly after J.'s birth, Mr Wdowiak separated from his partner, M.K., and moved out of the flat they had been sharing. In 2005, Mr Wdowiak made his first court complaint that M.K. was hindering his contact with J.

In December 2005, the parties reached a friendly settlement before the Bydgoszcz District Court detailing when Mr Wdowiak would be able to have contact with the child. In 2006, most of the visits took place as scheduled, but some were made impossible by M.K.. Both parents applied to increase their own access rights and M.K. also indicated her intention to move to Germany with J.. M.K. withdrew her application in January 2007 and the District Court discontinued both proceedings. On appeal, the Bydgoszcz Regional Court found that the District Court had been wrong to discontinue Mr Wdowiak's application just because M.K. had withdrawn hers. It also established that Mr Wdowiak's access rights were not being respected, because M.K. had moved to Germany with J. in January 2007.

Mr Wdowiak was deprived of any contact with J. for a year after the child had been taken to Germany. M.K. returned with the child in January 2008, only after Mr Wdowiak had made a successful application under the Hague Convention on the Civil Aspects of International Child Abduction.

In April 2008, the District Court approved another settlement regarding Mr Wdowiak's access rights, which was modified in September 2009 to extend the amount of time Mr Wdowiak could spend with his son. In March 2010, the District Court ordered the parties to have counselling and to attend mediation sessions, noting their inability to cooperate. Mr Wdowiak and M.K. began to attend counselling, but M.K. pulled out. Owing to the inability of the parties to communicate and make joint decisions, the courts limited Mr Wdowiak's involvement in decision-making to only the most important decisions relating to J.'s life.

In May 2012, Mr Wdowiak asked the court to modify the contact arrangements, claiming that his relationship with his son had got considerably worse and blamed M.K.'s behaviour for this. He also sought enforcement of the agreement of September 2009. In February 2013, M.K. applied to annul that agreement, stating that J. refused to see his father. After seeking expert opinions, the courts modified the access arrangements twice in 2013. J. was only to see Mr Wdowiak in public places and in the presence of his mother and a court guardian. The courts also granted Mr Wdowiak's request to seek a penalty payment from M.K. each time a visit did not take place. At a hearing in June 2014, Mr Wdowiak declared that he was no longer attending meetings with his son, as J.'s behaviour was

disruptive and aggressive. Their last meeting took place in November 2013. In 2014 and 2015 further mediation and family counselling was ordered by the courts.

Relying on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, Mr Wdowiak complains that the Polish authorities violated his family life by failing to take effective steps to enforce his right to have contact with his son.

[Dinu v. Romania \(no. 64356/14\)](#)

The applicant, Florian Dinu, is a Romanian national who was born in 1972 and lives in Șopârlița (Romania). The case concerns his allegation that he was beaten by police officers.

According to Mr Dinu, on 30 June 2013 two police officers arrested him at his house, after Mr Dinu's sister had called the emergency services and said that he was causing a disturbance. Mr Dinu claims that he did not resist arrest: but that nevertheless the policemen pushed him to the ground with his face down, handcuffed him with his hands behind his back, banged his head against a metal gate whilst dragging him off the premises, and punched him in the face when he was in the ambulance. The Government denies the allegations of ill-treatment, claiming that the injuries were not caused deliberately.

Mr Dinu was hospitalised, where he was diagnosed with a cervical spine injury and a minor cerebral trauma. He was fined 1,000 Romanian lei.

Mr Dinu's father lodged a criminal complaint against the policemen, claiming that they had abused his son. However, a prosecutor attached to the Olt prosecutor's office decided not to open a criminal investigation, finding that the officers had not injured Mr Dinu deliberately. Mr Dinu challenged the decision, but this was dismissed by a more senior prosecutor. Mr Dinu then appealed against the decision in court. However, in April 2014 the Balș District Court, sitting in private as a pre-trial chamber judge, dismissed the appeal and upheld the prosecutors' decisions.

Following an operation on Mr Dinu for his cervical spine injury, a medical report found that he continued to experience movement difficulties. A subsequent assessment in June 2015 found that he was suffering from a serious functional deficiency, and had completely lost his ability to work.

Relying in particular on Article 3 (prohibition of ill-treatment), Mr Dinu complains that he was beaten by police officers, and that the criminal investigation into the incident was ineffective: in particular, because the judge at the Balș District Court had examined his case in private and without summoning the parties.

[Revision](#)

[Petroiu v. Romania \(no. 33055/09\)](#)

The applicant, Florica-Maria Petroiu, is a Romanian national who was born in 1932 and lives in Bucharest.

The request for revision relates to a judgment of the European Court of Human Rights concerning a real estate restitution procedure.

Relying on Article 1 of Protocol No. 1 (protection of property) to the Convention, Ms Petroiu complained of the lack of compensation for the deprivation of her property.

In a judgment of 24 November 2009 the Court had found no violation of Article 1 of Protocol No. 1 on the ground of absence of compensation for the deprivation of property suffered by Ms Petroiu. In a judgment of 25 March 2014 the Court had decided to award Ms Petroiu 462,000 euros (EUR) in respect of pecuniary and non-pecuniary damage and EUR 2,025 in respect of costs and expenses.

On 13 June 2014 the Government requested the revision of both judgments on the basis of Article 80 of the Rules of Court, on the ground that new material had been discovered of which the

Court had been unaware at the time of delivery of the judgments and which the Government considered likely to have a decisive impact on the outcome of the case.

The Court will rule on that request for revision in its judgment of 7 February 2017.

[Bubon v. Russia \(no. 63898/09\)](#)

The applicant, Konstantin Bubon, is a Russian national who was born in 1974 and lives in Khabarovsk (Russia). He is a lawyer who also writes articles for various Russian law journals and online legal information databases and networks. The case concerns his complaint that the authorities denied him access to information he needed when researching an article on prostitution.

In May 2009 Mr Bubon wrote to his local police department asking for statistics in order to write an article on prostitution in the Khabarovsk region. He subsequently received a letter telling him that general crime statistics data was publicly available, but that information as specific as he had asked for was not processed and summarised by the police upon requests by private individuals. He was told to contact the Khabarovsk statistics service. However, they could not help him either as they had never been provided with the specific statistical information on prostitution as requested by Mr Bubon. Mr Bubon brought judicial proceedings, complaining about the authorities' refusal to provide him with the information he requested. His claim was ultimately dismissed in September 2009 on the ground that the authorities were not obliged to provide him with the information he had requested as it did not touch upon his rights or legitimate interests.

Relying on Article 10 (freedom of expression), Mr Bubon complains that the authorities denied him access to the information he required for his research.

[Lashmankin and Others v. Russia \(nos. 57818/09, 51169/10, 4618/11, 19700/11, 31040/11, 47609/11, 55306/11, 59410/11, 7189/12, 16128/12, 16134/12, 20273/12, 51540/12, 64243/12 and 37038/13\)](#)

The applicants are 23 Russian nationals who were born between 1941 and 1990, and live in Russia. They allege that the local authorities imposed restrictions on the location, time or manner of conduct of peaceful assemblies planned by them, without any proper justification.

The proposed assemblies were as follows: a picket on 31 January 2009 near the Memorial to the Victims of Political Repression in Yuri Gagarin Park, Samara, to commemorate the shooting of the human rights lawyer Stanislav Markelov and the journalist Anastasia Baburova; a march on the anniversary of these shootings, on 19 January 2010; two different pickets on 24 August 2009, at the Prefects of the Northern and Central Administrative District of Moscow, to protest about electoral violations and discrimination against certain groups; a march between Tverskoy Boulevard and Pushkin Square on 20 March 2010, to protest about the governance of Moscow; a gay pride march and meeting in the centre of St Petersburg on 26 June 2010; on the same day, a picket in four different administrative districts of St Petersburg; a gay pride march and meeting in St Petersburg on 25 June 2011; a picket in front of the Kaliningrad Regional Interior Department headquarters in May 2010, in support of government policies to fight corruption, reform the police, detect 'werewolves in epaulettes' and eradicate crime; a meeting on 20 March 2011 in Kaliningrad to protest against a police state and demand the resignation of Prime Minister Putin; a picket on 12 June 2009 in the centre of Rostov-on-Don, to protest against ineffective economic policies and other alleged government failings; 16 different "Strategy-31" meetings between October 2009 and August 2012, intended to be held in Rostov-on-Don in support of the right of freedom of assembly; and an individual picket in front of the State Duma on 19 December 2012, to protest about the law prohibiting the adoption of Russian children by US nationals.

With the exception of the last of these, in each case the applicants submitted a formal notice to the appropriate local authority, notifying it of their intention to hold an event. However, the authorities refused to approve its location, time or manner of conduct. In some cases where the authorities

proposed alternative locations, times or manner of conduct, the applicants allege that the authorities' proposals did not answer the purpose of their assembly, for example because the proposed locations were not in the city centre, far from any government officers and with limited passage of people, that is not within sight and sound of the target audiences. In other cases they repeatedly refused to approve any location, time or date suggested by the applicants, without suggesting any that would be suitable. In doing so, the authorities relied on allegedly insufficient or disproportionate grounds. In one case, the authorities made a decision to approve the time and venue of the event, but allegedly ensured that the applicant(s) would not receive the decision in time for the meeting to actually take place. Some applicants complain about the general ban on holding public events in the vicinity of court buildings. Other applicants complain about the automatic and inflexible application of the time-limits for notification of public events without taking into account that it was impossible to comply with the time-limit because of public holidays or spontaneous nature of the event. Lastly, several applicants complain about the exceptionally drastic security measures during their public event, in particular that the square where their event was held was fenced off by police vans to make it invisible to the general public.

In most of the cases, the applicants complain that these refusals meant that they could not hold their event at all, as it would have constituted an offence. In some cases however, the applicant(s) proceeded to hold their event as initially planned. All of these events were obstructed or entirely disrupted by the authorities; following which, the applicant(s) was arrested and charged with an administrative offence.

In numerous cases, the applicant(s) challenged the decision not to approve the location, time or manner of conduct of a public event planned by them, by making an appeal in court. In almost every case, the claims were rejected - both at first instance and on appeal – because the courts found that the refusals to approve the location, time or manner of conduct of the events were lawful and properly reasoned.

Relying in on Articles 10 (freedom of expression), 11 (freedom of assembly) and 14 (prohibition of discrimination), the applicants complain that the restrictions imposed on their proposed public events had breached their rights to freedom of expression and peaceful assembly – in numerous cases, by discriminating against them on the grounds of their political opinions or sexual orientation. Relying on Article 13 (right to an effective remedy) in conjunction with Article 11, the applicants complain that they did not have an effective remedy against the violations of their right to freedom of assembly – in particular, because there was no legal procedure available, which would have allowed them to obtain an enforceable decision prior to the date of their planned events. Three of the applicants also rely on Article 5 § 1 (right to liberty and security) to complain that they were arrested whilst protesting, and that these arrests had been arbitrary and unlawful. Finally, three applicants rely on Article 6 § 1 (right to a fair trial) to complain about the quashing of a judgment in their favor by way of supervisory review, and one applicant relies on the same Article to complain that he was convicted by a tribunal which was not established by law.

[Mkhchyan v. Russia \(no. 54700/12\)](#)

The applicant, Sergey Tatevosovich Mkhchyan, is a Russian national who was born in 1933 and lives in Moscow. The case concerns the demolition of a garage built by Mr Mkhchyan on a plot of land classified as federal railway land.

In March 1994, the Russian Ministry of Railways ('the MPS') approved the construction of garages alongside the Oktyabrskaya railway in Moscow, intended to serve as a noise shield. In October 1994, the land in question was assigned to the garage-building cooperative "Kashenkin Lug" ('GSK'), in accordance with the town-planning assignment.

In December 1994, Mr Mkhchyan joined GSK and paid his share for a garage. The garages were constructed and certified for use. In December 1996 the local administration issued Mr Mkhchyan

with a certificate attesting to his possession of the garage as from 3 December 1994. However, he never had his property rights registered in the real estate register.

In March 2003, the Oktyabrskaya Railway concluded a lease agreement with GSK in respect of the land occupied by the garages. GSK continued to pay the rent due under the lease until 31 July 2007. Under the lease, the land was allocated for placement of garage boxes and the construction of permanent structures was prohibited. Temporary structures could only be built with written approval by the Oktyabrskaya Railway and had to be removed at the end of the lease. The lease could be terminated unilaterally for a number of reasons, including if the land was required for the purposes of the railway. In 2003, the MPS was succeeded by “Russian Railways” (‘RZD’).

In April 2011, RZD notified Mr Mkhchyan that he had to vacate his garage as there had been a unilateral termination of the lease agreement, the land being needed for the purposes of the railway. He refused to comply. RZD brought court proceedings against Mr Mkhchyan seeking the removal of his garage from the plot in question.

In November 2011, the Ostankinskiy District Court of Moscow ordered Mr Mkhchyan to remove his garage within ten days of the judgment becoming final and authorised RZD to remove the garage if he failed to comply with the court decision. Mr Mkhchyan appealed, claiming in particular that he was entitled to compensation. The Moscow City Court upheld the District Court decision on appeal, holding that the law did not provide for the possibility of claiming compensation for the demolition of an unauthorised construction.

In April 2012, the Ostankinskiy District bailiff’s service in Moscow instituted enforcement proceedings. As Mr Mkhchyan had refused to comply voluntarily with the judgment of the District Court, RZD proceeded to demolish his garage. The Ostankinskiy District bailiff’s service was informed and enforcement proceedings were terminated.

Relying on Article 1 of Protocol No. 1 (protection of property), Mr Mkhchyan complains that he has been unlawfully deprived of his property.

[Cvetković v. Serbia \(no. 42707/10\)](#)

The applicant, Suzana Cvetković, is a Serbian national who was born in 1981 and lives in Niš (Serbia). The case concerns her contact rights with her child.

Ms Cvetković gave birth to a daughter, A.C, in February 1999. One year later, she married V.C., her daughter’s biological father. In February 2005, V.C. lodged a claim with the Niš Municipal Court, seeking dissolution of the marriage, custody of A.C., and child maintenance.

In May 2005, the Niš Social Care Centre granted Ms Cvetković interim care and custody of A.C. Soon afterwards, while Ms Cvetković and A.C. were visiting a mental health care institute where the child was undergoing treatment, V.C. forcibly removed A.C. from her mother’s custody and in doing so assaulted Ms Cvetković physically. In July 2005 the Niš Municipal Court issued an interim custody order requiring V.C. to surrender custody of A.C. to Ms Cvetković until the end of the marriage dissolution proceedings. Four failed attempts were made to enforce the order.

In January 2008, the Municipal Court dissolved the marriage, awarded custody of A.C. to V.C., and ordered Ms Cvetković to pay monthly child maintenance. The court held that Ms Cvetković was entitled to spend time with A.C. at the Doljevac Social Care Centre every Saturday. This judgment was upheld on appeal to the Niš District Court and the Supreme Court of Serbia. The courts relied on an expert report by the Niš Mental Care Institute and found that, notwithstanding her initial forcible removal from Ms Cvetković’s custody, it was in A.C.’s best interests to remain with her father, as separation could have a detrimental psychological impact. In September 2008, the Municipal Court suspended the interim custody proceedings. Ms Cvetković never sought enforcement of the judgment of January 2008 as regards the weekly meetings with A.C.

In March 2010, Ms Cvetković lodged an appeal with the Constitutional Court, alleging a breach of her parental and family rights as a result of the non-enforcement of the Municipal Court's interim custody order of May 2005. She also argued that the Supreme Court ruling on custody had failed to take into account A.C.'s best interests, had instead retroactively endorsed V.C.'s violent and unlawful conduct, and had permanently separated her from her child. The court dismissed her complaint regarding the interim custody order for being out of time and rejected her complaint regarding the Supreme Court on its merits, accepting the Supreme Court's reasoning entirely.

Following a review of the judgment of January 2008, the Niš Municipal Court granted Ms Cvetković custody of A.C. in October 2012 and ordered V.C. to pay child maintenance. A.C. moved in with her mother shortly after the judgment became final. In August 2015, A.C. moved back to her father's home and it appears that she is still living with him by choice. It also appears that V.C. filed a claim for review of the judgment of October 2012 on custody of A.C.; those proceedings are still pending.

Relying on Article 8 (right to respect for private and family life), Ms Cvetković complains that for a period of more than seven years she had no contact with her child due to the Serbian authorities' failure to enforce the interim custody order. Ms Cvetković further complains that the Supreme Court's judgment of May 2009 granting custody of A.C. to V.C. and the Constitutional Court's subsequent approval of that judgment had both been arbitrary, effectively amounting to an endorsement of V.C.'s previous violent and unlawful behaviour.

Just Satisfaction

Gümrükçüler and Others v. Turkey (no. 9580/03)

The 34 applicants are Turkish nationals who were born between 1922 and 1996 and live in Turkey.

The case concerns the annulment of property deeds in respect of plots of land belonging to the applicants and their re-registration in the name of the Treasury, without payment of compensation, on the grounds that the land in question had formerly belonged to the national forestry sector.

Relying on Article 1 of Protocol No. 1 (protection of property) and Article 6 § 1 (right to a fair trial within a reasonable time), the applicants alleged that they had been deprived of their plots of land, classified as forest areas, without compensation, also complaining of the length of proceedings.

In its principal judgment of 26 January 2010 the Court found no violation of Article 1 of Protocol No. 1 and of Article 6 § 1. It also held that the issue of the application of Article 41 (just satisfaction) of the Convention was not ready for decision and postponed the examination of that issue to a later date. The Court will determine the issue in its judgment of 7 February 2017.

İrfan Güzel v. Turkey (no. 35285/08)

The applicant, İrfan Güzel, is a Turkish national who was born in 1971 and lives in Mardin (Turkey).

The case concerns the tapping of telephone calls made by Mr Güzel, who was suspected of arms trafficking, and his arrest and conviction on the basis of evidence provided by the phone-tapping operation.

The authorities launched an investigation into Mr Güzel's alleged arms-trafficking activities. The telephones of several suspects, including Mr Güzel, were tapped. The recordings showed that Mr Güzel was in contact with an individual residing in Iraq with whom he had concluded an agreement on a firearms transfer through the intermediary of a third person. On 14 January 2008 Mr Güzel and that third person were arrested, and six weapons and 128 rounds of ammunition were seized.

On 8 February 2008 the prosecution charged Mr Güzel and two other individuals with involvement in international arms trafficking and aiding and abetting the PKK, referring in particular to their telephone conversations and the weapons and ammunition seized. Mr Güzel was sentenced to

twelve years, six months' imprisonment for aiding and abetting a terrorist organisation, which decision was upheld by the Court of Cassation on 31 March 2010.

Relying on Article 5 §§ 1 and 3 (right to liberty and security), Mr Güzel complained that he had been arrested and placed in pre-trial detention in the absence of any reasonable suspicion of commission of an offence, remaining in police custody for four days. Relying on Article 6 § 1 (right to a fair trial), he complained that recordings of his telephone conversations had been used in evidence against him. Relying on Article 13 (right to an effective remedy), taken in conjunction with Articles 5 and 6, he complained that he had had no effective remedy for his complaints.

Relying on Article 8 (right to respect for private and family life) taken alone and in conjunction with Article 13 (right to an effective remedy), Mr Güzel complained that his telephone had been tapped in the absence of any prior judicial decision. Furthermore, he submitted that the conditions laid down in the Code of Criminal Procedure for implementing such measures had not been met and that he had had no effective remedy to contest the non-compliance with those rules.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Marov and Others v. Russia (nos. 47017/06, 23797/07, 10723/08, 24617/09, 28490/09, 30762/09, 58626/09, 65993/10, 45047/11 and 40844/12)

Sayerov v. Russia (no. 33071/12)

Sekretarev and Others v. Russia (nos. 9678/09, 42122/09, 13886/10, 19115/10, 73499/10, 8797/11, 34310/12, 63933/12 and 63951/12)

Zakhodyakin and Others v. Russia (nos. 26401/06, 29258/06, 12149/07, 37061/07, 35903/08, 4874/09, 20343/09, 28877/09, 29514/09, 31466/09, 32934/10, 70306/11 and 59413/12)

Thursday 9 February 2017

[Just satisfaction](#)

[Velcheva v. Bulgaria \(no. 35355/08\)](#)

This case deals with the question of just satisfaction following a judgment by the European Court of Human Rights on claims for restitution of agricultural land.

The applicant, Gana Velcheva, is a Bulgarian national who was born in 1927 and lives in the village of Ribaritsa (Bulgaria). She is the sole heir to agricultural land in the area surrounding her village which was incorporated into an agricultural cooperative at the beginning of the 1950s. In 1991 she applied for this land's restitution. The land commission dealing with her case refused to restore her rights to two plots of land as sheep pens had been built on them by the cooperative, holding that she was entitled to compensation in lieu of restitution. She brought judicial review proceedings and in a final judgment of September 2005 the courts found that the plots of land in question, not having been built on, could be restituted in kind. The Agriculture and Forestry Department subsequently took two decisions in 2006: the first refusing restitution in kind because the cooperative had sold the plots of land to a third party in 1995; and the second restoring her rights to three plots. It was not clear whether this latter decision had actually ever been received by Ms Velcheva who claimed that the final judgment of September 2005 remained unenforced to date. The Government submitted that the restitution procedure had indeed not yet been completed as the property dispute had to be resolved first between Ms Velcheva and the third party to whom the land had been transferred.

Relying in particular on Article 6 § 1 (right to a fair trial) and Article 1 of Protocol No. 1 (protection of property), Ms Velcheva complained that the authorities had failed to comply with final court

judgments in her favour resulting in her inability either to obtain a decision on or to complete the process for restitution of her agricultural land.

In its [judgment on the merits of 9 June 2015](#) the Court found violations of Article 6 § 1 and Article 1 of Protocol No. 1. The Court awarded Ms Velcheva 2,500 euros (EUR) for costs and expenses and held that the question of the application of Article 41 (just satisfaction) of the Convention, insofar as it concerned her claims for pecuniary and non-pecuniary damage, was not ready for decision and reserved it for examination at a later date.

The Court will rule on this question in its judgment of 9 February 2017.

Just satisfaction

[Čapský and Jeschkeová v. the Czech Republic \(nos. 25784/09 and 36002/09\)](#) [Heldenburg v. the Czech Republic \(no. 65546/09\)](#)

These cases deal with the question of just satisfaction following a judgment by the European Court of Human Rights on complaints about rent regulations.

The applicants in this case are four Czech nationals: Josef Čapský, born in 1939, Miroslava Jeschkeová, born in 1947, Michal Heldenburg, born in 1975, and Olga Heldenburg, born in 1979. They live in Prague and Brno (the Czech Republic).

The applicants, who are property owners, complained about rent regulations imposed by the state in various periods between 2002 and 2006. Their main concern was that they were unable to increase the rents paid by their tenants which they considered too low and which they had never agreed to. The respective rent agreements were created when the applicant property owners entered into existing tenancy agreements which retained certain rights relating to the personal use of a flat. This meant that the agreements were valid for an indefinite period, rents were set in compliance with regulations existing at the relevant time, and the landlord's right to terminate was seriously limited. All the applicants sued the State for damages corresponding to the difference between the regulated rent and the amount of rent usually paid in their locality. Their claims were ultimately dismissed by the Constitutional Court in 2008 and 2009.

Relying in particular on Article 1 of Protocol No. 1 (protection of property), the applicants notably complained that the rent agreements had adversely affected their peaceful enjoyment of their property.

In its [judgment on the merits of 3 July 2014](#) the Court found a violation of Article 1 of Protocol No. 1 (protection of property) and reserved the question of just satisfaction (Article 41) for examination at a later date.

The Court will rule on this question in its judgment of 9 February 2017.

[Mitzinger v. Germany \(no. 29762/10\)](#)

The applicant, Gertraud Mitzinger, was born in 1940 and lives in Bayreuth (Germany). The case concerns her complaint that she could not assert her inheritance rights after her father's death in 2009, as she had been born out of wedlock and before a cut-off point provided for by legislation in force at the time. Notably, children born outside marriage before 1 July 1949 were excluded from any statutory entitlement to inherit and from the right to financial compensation.

Ms Mitzinger is the natural and only daughter of her father, who recognised paternity in 1951. She lived in the former German Democratic Republic until 1984, while her father lived in the Federal Republic of Germany with his wife. Ms Mitzinger and her father corresponded regularly during that period and she visited him and his wife every year between 1954 and 1959. After moving to Bavaria in 1984 with her husband and daughter, she visited her father regularly until 2007. He died in 2009.

In January 2009, directly after her father's death, Ms Mitzinger applied to the Memmingen District Court for the right to administer her father's estate. She asserted that she needed this power as her father's wife had dementia, and that she was a statutory heir. The court dismissed her application. As Ms Mitzinger had been born before 1 July 1949, she was excluded under section 12(10)(2) of the Children Born outside Marriage (Legal Status) Act from any statutory entitlement to her father's estate and from the right to financial compensation. Nor was she entitled to receive any copies of documents about the estate.

On appeal, the Memmingen Regional Court refused to grant her the power to administer her father's estate. The court referred to the relevant provision of the Children Born outside Marriage (Legal Status) Act and case-law of the Federal Constitutional Court finding that provision in conformity with the German constitution. The Munich Court of Appeal dismissed Ms Mitzinger's appeal in May 2009 on the grounds that it was bound by the decisions of the Federal Constitutional Court which had found this provision to be valid.

Ms Mitzinger was also unsuccessful in her constitutional appeal to the Federal Constitutional Court. The court declared her complaint inadmissible for lack of substantiation, holding that Ms Mitzinger should have given further reasons to contest the validity of the relevant provision, but that she had failed to do so.

Relying on Article 14 (prohibition of discrimination) in conjunction with Article 8 (right to respect for private and family life), Ms Mitzinger complains that section 12(10)(2) of the Children Born outside Marriage (Legal Status) Act resulted in her being unable to assert her inheritance rights and was discriminatory.

[Igbo and Others v. Greece \(no. 60042/13\)](#)

The applicants are 14 Greek, Turkish, Nigerian, and Senegalese nationals who were born between 1951 and 1989. The case concerns their complaints about inhuman and degrading detention conditions in Chios Prison (Greece) where 12 of the applicants were detained either in pre-trial detention or serving prison sentences at the time of lodging their application. The other two applicants were detained in Chios Prison until 2013, one of them having been transferred to another prison and one other released.

The applicants essentially submit that Chios Prison is overcrowded to the point that it is standard practice for inmates to have to sleep on the floor in their cells. They also complain about the lack of hygiene and inadequate medical care. The Government contest these allegations, essentially asserting that the prison slightly exceeded its capacity at the time when the applicants lodged their applications with the European Court, but was not overcrowded.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 13 (right to an effective remedy), the applicants allege that the conditions of their detention in Chios Prison are or were inhuman and degrading and that there are no effective remedies in domestic law for them to complain.

[Messana v. Italy \(no. 26128/04\)](#)

The applicants, Calogero Messana, Rosa Messana and Giuseppa Messana, are Italian nationals who were born in 1946, 1944 and 1948 respectively and live in Caltanissetta (Italy).

The case concerns the applicants' complaint about the expropriation of their land for the construction of low-rent housing (HLM) by the municipal council.

A municipal decree was issued concerning a 3,690 sq. m. plot of building land belonging to the applicants in Canicattí, authorising its emergency occupation for five years in order to build low-rent housing (HLM). The land was occupied on 16 July 1980.

On 11 January 1991 the applicants lodged an action for damages, submitting that the building works had irreversibly transformed their land, without any expropriation decree or compensation of any kind. They claimed compensation for the market value of the property and for the period of occupation.

On 23 January 1997 the Agrigente Court found that the building of the HLM had indeed entailed transferring the ownership of the land to the government. However, the court also noted that the applicant's action was statute-barred, since the five-year limitation period had started on 18 June 1985. The applicants appealed against that decision, and on 11 October 2002 the Palermo Court of Appeal granted the applicants' action on the grounds that they had been deprived of their land on 18 June 1986 and that their action was therefore not statute-barred. The municipal council was therefore ordered, pursuant to Act No. 662 of 1996, to pay them a sum of 92,316.67 euros (EUR) for the loss of ownership of the land, and EUR 25,177.27 in compensation for the temporary occupation. That judgment became final on 12 January 2004.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants complained of the deprivation of their land by way of indirect expropriation. Relying on Article 6 § 1 (right to a fair trial), they complained about the unfairness of the proceedings, submitting that their compensation not been based on the market value of their land. The applicants also relied on Article 17 (prohibition of abuse of rights).

[Solarino v. Italy \(no. 76171/13\)](#)

The applicant, Giorgio Solarino, is an Italian national who was born in 1972 and lives in Catania (Italy).

The case concerns a judicial decision limiting Mr Solarino's right of access to his daughter.

In 2006, Mr Solarino and his wife (C.C.) separated. The parents were granted joint custody of their daughter, who was two years old at the time, and the court ordered that the child should reside with her mother, granting the father rights of access and accommodation.

In 2007 C.C. filed a complaint against Mr Solarino, accusing him of having touched the child in a sexual manner and requesting the removal of his parental authority. The court suspended Mr Solarino's access to the child pending an expert investigation, which subsequently established that Mr Solarino was innocent of any wrongdoing. By decision of 26 March 2009, therefore, the court decided to restore his right of access to his daughter, including by telephone. The complaint against him was dropped.

In 2009, C.C. appealed, reiterating her accusations. The Court of Appeal ordered that contact between Mr Solarino and his daughter should take place in a protective environment, and commissioned a further expert assessment, which was submitted in 2011, establishing that there was no evidence of sexual abuse. By decision of 29 July 2011 the Court of Appeal decided to prohibit all contact between the child and her paternal grandparents and to restrict Mr Solarino's access rights until the child was ten years of age, disregarding the findings of the expert report and basing the reasons for its decision primarily on the mother's suspicions.

Following two unsuccessful appeals, contact was resumed between Mr Solarino and his daughter without any protective constraints, the Catania court having found, in a decision of 11 November 2013, that there was no indication that the child had suffered psychological damage. Both parents were given joint custody of the child, and the court granted Mr Solarino rights of access and accommodation. That decision was upheld on appeal.

Relying in particular on Article 8 (right to respect for private and family life), Mr Solarino complained of his inability, over many years, to create or maintain a relationship with his daughter, arguing that she had sustained very serious damage owing to the deterioration of her relations with her paternal

grandparents, her half-brother and himself following the Court of Appeal's decision of 29 July 2011. He also complained of the unfairness of the proceedings.

Selmani and Others v. "the former Yugoslav Republic of Macedonia" (no. 67259/14)

The applicants, Naser Selmani, Toni Angelovski, Biljana Dameska, Frosina Fakova, Snežana Lupevska, and Nataša Stojanovska, are six Macedonian nationals who live in Skopje. Accredited journalists, they complain about their forcible removal from the national Parliament gallery where they were reporting on a parliamentary debate.

On 24 December 2012 the applicants, together with other journalists, were reporting from the Parliament gallery, the designated area for journalists authorised to report on the work of Parliament. They were following the debate about approval of the State budget for 2013, which had been a source of tension between the opposition and ruling party MPs and had attracted considerable public and media attention. At the same time two opposing groups of people were protesting in front of the Parliament building.

The strained atmosphere culminated in a group of MPs creating a disturbance in the parliamentary chamber. They surrounded the Speaker, slapped his table, prevented access to the podium and started damaging technical equipment. The Speaker, who had been pulled out of the chamber, ordered security to restore order. Security officers then forcibly ejected opposition MPs. Other officers started removing journalists, including the applicants, from the gallery. Some journalists complied. However, the applicants refused to leave, as they felt that the public had the right to be informed as to what was going on. They ended up being forcibly removed. The applicants deny that they were informed that they had to leave for security reasons and that a security officer had been injured by one of the applicants during their forcible removal. They also contest that they had been allowed to follow the events in the parliamentary chamber via a live broadcast in the Parliament's press room or that there had been a live stream while the opposition MPs were being ejected.

The applicants subsequently lodged a constitutional complaint, alleging that their right to freedom of expression (under Article 10 of the European Convention on Human Rights) on a parliamentary debate of particular public interest had been breached. They also urged the Constitutional Court to hold a public hearing on their case.

Following a hearing held in April 2014 in the absence of the parties, the Constitutional Court dismissed the applicants' complaint. It found that the applicants' removal from the Parliament gallery had been based on section 43 of the Parliament Act and Articles 91-94 of the parliamentary Rules of Procedure and that those provisions had applied to all participants of the parliamentary proceedings, including the journalists in the gallery. It also concluded that it had been necessary to remove the applicants from the gallery for security reasons in view of a number of incidents during the proceedings, notably objects had been thrown in the chamber – some in the direction of the gallery. The purpose of the measures had therefore been to protect the journalists by taking them to a safer place and not to restrict their freedom of expression. In fact, the journalists had been able to follow the live broadcast of the debate from other premises and most of them had submitted and published their reports in the evening editions of their newspapers.

Relying on Article 10 (freedom of expression) and Article 6 § 1 (right to a fair hearing), the applicants complain about their removal from the Parliament gallery and about the lack of an oral hearing in the ensuing proceedings before the Constitutional Court.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Molga v. Poland (no. 78388/12)
Oprea v. Romania (no. 49473/07)
Abramyan v. Russia (no. 41859/15)
Gromovich and Others v. Russia (nos. 22863/09, 44081/09, 59867/09, 7072/10, 17549/10, 26414/10, 70555/12, 16728/13, 24270/13 and 30046/13)
Koltakova v. Russia (no. 23558/06)
Kondrashov v. Russia (no. 49698/06)
Mitin and Others v. Russia (nos. 26285/06, 42567/06, 39006/08, 49721/08 and 24953/14)
Podyapolskiy and Mazur v. Russia (no. 22350/11)
Rusakov v. Russia (no. 39630/03)
Shi v. Russia (no. 60186/09)
Adamco v. Slovakia (no. 62323/13)
Kubovcak v. Slovakia (no. 10413/16)
Mehes v. Slovakia (no. 60728/13)
Polakova v. Slovakia (no. 16443/16)
Đorđević and Others v. Serbia (nos. 5591/10, 17802/12, 23138/13 and 25474/14)
Erdogan v. Turkey (no. 6656/10)
Erkan and Others v. Turkey (nos. 48369/10, 48495/10, 48498/10, 48535/10, 48553/10, 48566/10, 48597/10, 48606/10, 48654/10, 48704/10, 48737/10, 48769/10, 48788/10, 48804/10, 48897/10, 48911/10, 48914/10, 49138/10, 49324/10, 49355/10, 49364/10, 49382/10 and 49419/10)
Oktay and Özcan v. Turkey (nos. 26293/11 and 30248/12)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.